

construed to give life estates only) with a *mere power of leasing for 21 years*, to be exercised during the continuance of the trust without any purpose affecting the fee simple, and which power of leasing extended to other estates also, which were clearly devised to the beneficiaries directly, it was held that the mere power of leasing was not sufficient to countervail the rule that the legal estate was not to be extended beyond the necessity of the trust, and that under all the circumstances the trustees took an estate for the * life of the mother and the minority of the child [*220] dren with a *power of leasing (a)*.

7. **Late Wills Act.**—The law upon the subject has now undergone some alteration from the provisions of the late Act (7 W. 4. and 1 Vict. c. 26) for the amendment of the law of wills.

By the 30th section it is declared, “that where any real estate (other than or not being a presentation to a church) shall be devised to any *trustee or executor*, such devisee shall be construed to pass *the fee simple*, or other the *whole estate or interest* which the testator had power to dispose of by will in such real estate, unless a *definite term of years*, absolute or determinable, or an *estate of freehold* shall thereby be given to him, *expressly or by implication.*”

And by the following section it is enacted, “that where any real estate shall be devised to a trustee *without any express limitation of the estate* to be taken by such trustee, and the beneficial interest in such real estate or in the surplus rents and profits thereof shall not be given to any person for life, or shall be given for life, but the purposes of the trust may continue beyond the life of such person, such devise shall be construed to vest in such trustee *the fee simple* or other the whole legal estate which the testator had power to dispose of by will, and not an estate determinable when the purposes of the trust shall be satisfied.”

Effect of the Act.—The effect of these provisions is by no means clear, but it is conceived that a *definite* chattel interest, as a term of 99 years, or a simple *freehold*, as an estate

(a) *Doe v. Cafe*, 7 Exch. 675; and see *Adams v. Adams*; 6 Q. B. 860; *Lambert v. Browne*, 5 I. R. C. L. 218.